

Short title.

1. This Act may be cited as the Fatal Accidents and Sudden Deaths Inquiry (Scotland) Act, 1906.

Verdicts to be returned.

2. Subsection (7) of section four of the Fatal Accidents Inquiry (Scotland) Act, 1895, is hereby repealed, and, in lieu thereof, be it enacted that the jury, after hearing the evidence and the persons, if they so desire, appearing thereon, including any person duly authorised by any trades union or friendly society of which the deceased was a member, and the summing up by the sheriff, if he shall consider such summing up necessary or proper, shall return a verdict setting forth, so far as such particulars have been proved, when and where the accident and the death or deaths to which the inquiry relates took place, the cause or causes of such accident or death or deaths, the person or persons, if any, to whose fault or negligence the accident is attributable, the precautions, if any, by which it might have been avoided, any defects in the system or mode of working which contributed to the accident, and any other facts disclosed by the evidence which, in the opinion of the jury, are relevant to the inquiry.

Public inquiries.

3. In any case of sudden or suspicious death in Scotland, the Lord Advocate may, whenever it appears to him to be expedient in the public interest, direct that a public inquiry into such death and the circumstances thereof shall be held; and the public inquiry so directed to be held shall take place according to the forms and procedure prescribed by the Fatal Accidents Inquiry (Scotland) Act, 1895, as altered by this Act.

Repeal of
58 & 59 Vict.
c. 36. s. 4,
s.s. 10.

4. Subsection ten of section four of the Fatal Accidents Inquiry (Scotland) Act, 1895, is hereby repealed, and in lieu thereof be it enacted as follows, namely:—

The jury shall be cited by the sheriff clerk from the sheriff court jury book in the manner provided by statute for the citation of jurors in civil cases in Scotland, and the existing statutory provisions relative to fines for non-attendance of jurors and to the swearing of jurors shall apply to inquiries under this Act; but no person shall be summoned to attend to serve as a juror in any inquiry held under this Act who resides beyond such distances from the court-house or other building at which the inquiry is held as may from time to time be fixed by the several sheriffs of the several counties, with the approbation of the Secretary for Scotland.

CHAPTER 36.

An Act to amend the law relating to Musical Copyright.

[4th August 1906.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) Every person who prints, reproduces, or sells, or exposes, offers, or has in his possession for sale, any pirated copies of any musical work, or has in his possession any plates for the purpose of printing or reproducing pirated copies of any musical work, shall (unless he proves that he acted innocently) be guilty of an offence punishable on summary conviction, and shall be liable to a fine not exceeding five pounds, and on a second or subsequent conviction to imprisonment with or without hard labour for a term not exceeding two months or to a fine not exceeding ten pounds: Provided that a person convicted of an offence under this Act who has not previously been convicted of such an offence, and who proves that the copies of the musical work in respect of which the offence was committed had printed on the title page thereof a name and address purporting to be that of the printer or publisher, shall not be liable to any penalty under this Act unless it is proved that the copies were to his knowledge pirated copies.

Penalty for
being in pos-
session of
pirated music.

(2) Any constable may take into custody without warrant any person who in any street or public place sells or exposes, offers, or has in his possession for sale any pirated copies of any such musical work as may be specified in any general written authority addressed to the chief officer of police, and signed by the apparent owner of the copyright in such work or his agent thereto authorised in writing, requesting the arrest, at the risk of such owner, of all persons found committing offences under this section in respect to such work, or who offers for sale any pirated copies of any such specified musical work by personal canvass or by personally delivering advertisements or circulars.

(3) A copy of every written authority addressed to a chief officer of police under this section shall be open to inspection at all reasonable hours by any person without payment of any fee, and any person may take copies of or make extracts from any such authority.

(4) Any person aggrieved by a summary conviction under this section may in England or Ireland appeal to a court of quarter sessions, and in Scotland under and in terms of the Summary Prosecutions Appeals (Scotland) Act, 1875.

38 & 39 Vict.
c. 62.

2.—(1) If a court of summary jurisdiction is satisfied by information on oath that there is reasonable ground for suspecting that an offence against this Act is being committed on any premises, the court may grant a search warrant authorising the constable named therein to enter the premises between the hours of six of the clock in the morning and nine of the clock in the evening, and, if necessary, to use force for making such entry, whether by breaking open doors or otherwise, and to seize any copies of any musical work or any plates in respect of which he has reasonable ground for suspecting that an offence against this Act is being committed.

Right of entry
by police for
execution of
Act.

(2) All copies of any musical work and plates seized under this section shall be brought before a court of summary jurisdiction, and if proved to be pirated copies or plates intended

to be used for the printing or reproduction of pirated copies shall be forfeited and destroyed or otherwise dealt with as the court think fit.

Definitions.

3. In this Act—

The expression “pirated copies” means any copies of any musical work written, printed, or otherwise reproduced without the consent lawfully given by the owner of the copyright in such musical work :

The expression “musical work” means a musical work in which there is a subsisting copyright, and which has been registered in accordance with the provisions of the Copyright Act, 1842, or of the International Copyright Act, 1844, which registration may be effected notwithstanding anything in the International Copyright Act, 1886 :

The expression “plates” includes any stereotype or other plates, stones, matrices, transfers, or negatives used or intended to be used for printing or reproducing copies of any musical work : Provided that the expressions “pirated copies” and “plates” shall not, for the purposes of this Act, be deemed to include perforated music rolls used for playing mechanical instruments, or records used for the reproduction of sound waves, or the matrices or other appliances by which such rolls or records respectively are made :

The expression “chief officer of police”—

(a) with respect to the City of London, means the Commissioner of City Police ;

(b) elsewhere in England has the same meaning as in the Police Act, 1890 ;

(c) in Scotland has the same meaning as in the Police (Scotland) Act, 1890 ;

(d) in the police district of Dublin metropolis means either of the Commissioners of Police for the said district ;

(e) elsewhere in Ireland means the District Inspector of the Royal Irish Constabulary :

The expression “court of summary jurisdiction” in Scotland means the sheriff or any magistrate of any royal, parliamentary, or police burgh officiating under the provisions of any local or general police Act.

Short title.

4. This Act may be cited as the Musical Copyright Act, 1906.

5 & 6 Vict. c. 45.

7 & 8 Vict. c. 12.

49 & 50 Vict.
c. 33.

53 & 54 Vict.
c. 45.

53 & 54 Vict.
c. 67.